

TENTATIVE RULING

Case: **Sottana v. General Motors LLC**
Case No. CV2024-2061

Hearing Date: **March 17, 2026** **Department Eleven** **9:00 a.m.**

Motion to tax costs:

The Court rules on defendant General Motors LLC's motion to tax counsel's memorandum of costs as follows:

- The motion as to filing and motion fees is **DENIED**. (Code Civ. Proc., §§ 1032, 1033.5, subd. (a)(1).) The Court finds that these costs were reasonably necessary to the litigation and actually incurred. (Civ. Code, § 1794; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266; *Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29; *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137 – 138; Argent Decl., ¶ 3, Exhibit 1.)
- The motion as to service of process costs is **DENIED**. (Code Civ. Proc., §§ 1032, 1033.5, subd. (a)(4)(B).) The Court finds that this cost were reasonably necessary to the litigation and actually incurred. (Civ. Code, § 1794; *Jones, supra*, 63 Cal.App.4th at p. 1266; *Foothill-De Anza Community College Dist., supra*, 158 Cal.App.4th at p. 29; *Jensen, supra*, 35 Cal.App.4th at pp. 137 – 138; Argent Decl., ¶ 4, Exhibit 2.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for attorney fees:

Plaintiff Steven Sotanna's motion for attorney fees is **GRANTED IN PART** in the amount of **\$46,558.00**. (Civ. Code. § 1794.) The Court finds that:

- Defendant General Motors LLC has not shown that any of the challenged fees are excessive or were not reasonably incurred by plaintiff in connection with the commencement and prosecution of this action. (Civ. Code, § 1794, subd. (d); *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396 [“...verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”]; see *California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537 [if the billing entries sufficiently establish the tasks were carried out in connection with the litigation, the fact that they

were block billed is of no consequence]; accord *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 487; *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24 [use of templates held to be a proper basis for fee award where counsel performed work necessary to conform those templates to the facts of the case] see also *Sundance v. Municipal Court* (1987) 192 Cal.App.3d 268, 274; Argent Decl., ¶ 30, Exhibit 14.)

- Plaintiff's counsel's rates are reasonable and commensurate with the prevailing rate in the community. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004, 1009; *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71 – 72; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243; see *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1005 [the hourly rates sought by and awarded to counsel in other similar cases is evidence of the basic rates charged by lawyers, law clerks, and paralegals and is the starting point of the fee award]; Argent Decl., ¶¶ 12 – 17, 21, Exhibits 3, 7.)
- A multiplier is not warranted in this straightforward Song-Beverly Consumer Warranty Act case. (See *Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556-557; *Downey Cares v. Downey Community Development Com.* (1987) 196 Cal.App.3d 983, 994; Argent Decl., ¶¶ 3 – 11.)

The Court declines to award anticipated fees because Civil Code section 1794 expressly requires that fees must have been “incurred” to be recoverable. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **State of California, by and through the Department of Water
Resources v. Angelo K. Tsakopoulos Holdings, LP et al.
Case No. CV2022-1807**

Hearing Date: **March 17, 2026** **Department Fourteen** **9:00 a.m.**

Defendant SFPP, LP's motion for leave to file supplemental brief is **DENIED AS MOOT**. On February 19, 2026, the Court accepted defendant's supplemental brief filed by declaration on February 18, 2026. (Minute Order, p. 4 [2/19/26]; see *In re S.P.* (2020) 53 Cal.App.5th 13, 16 ["Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights"].)